

INSTRUCTIONS FOR FLORIDA SUPREME COURT APPROVED FAMILY LAW FORM 12.902(k), NOTICE OF JOINT VERIFIED WAIVER OF FILING FINANCIAL AFFIDAVITS (10/23)

When should this form be used?

You should only complete this form if all of the following are true:

1. You have executed this form before you enter into any agreement or stipulation that would be dispositive of/resolve the matter pending before the court;
2. You have received a copy of the other party's fully executed and complete financial affidavit;
3. You have provided the other party with a copy of your fully executed and complete financial affidavit; and
4. You and the other party prefer to keep both financial affidavits private and do not want them to be filed with the court.

What should I do next?

A copy of this form must be filed with the court and served on the other party or his or her attorney. The copy you are serving on the other party must be either mailed, e-mailed, or hand-delivered to the opposing party or his or her attorney on the same day indicated on the certificate of service. If it is mailed, it must be postmarked on the date indicated in the certificate of service. Service must be in accordance with Florida Rules of General Practice and Judicial Administration 2.516.

IMPORTANT INFORMATION REGARDING E-FILING

The Florida Rules of General Practice and Judicial Administration now require that all petitions, pleadings, and documents be filed electronically except in certain circumstances. Self-represented litigants may file petitions or other pleadings or documents electronically; however, they are not required to do so. If you choose to file your pleadings or other documents electronically, you must do so in accordance with Florida Rule of General Practice and Judicial Administration 2.525, and you must follow the procedures of the judicial circuit in which you file. The rules and procedures should be carefully read and followed.

IMPORTANT INFORMATION REGARDING E-SERVICE

After the initial service of process of the petition or supplemental petition by the sheriff or certified process server, the Florida Rules of General Practice and Judicial Administration require that all documents required or permitted to be served on the other party must be served by electronic mail (e-mail) except in certain circumstances. **You must strictly comply with the format requirements set forth in the Florida Rules of General Practice and Judicial Administration**, and you **must** review Florida Rule of General Practice and Judicial Administration 2.516. You may find that rule at www.flcourts.org through the link to the Rules of General Practice and Judicial Administration provided under either Family Law Forms: Getting Started, or Rules of Court in the A-Z Topical Index.

SELF-REPRESENTED LITIGANTS MUST SERVE DOCUMENTS BY E-MAIL UNLESS OTHERWISE EXCUSED. If a self-represented litigant has been excused from serving documents by e-mail and then elects to serve and receive documents by e-mail, the procedures must always be followed once the initial election is made.

To serve and receive documents by e-mail, you must designate your e-mail address by using the **Designation of Current Mailing and E-mail Address**, Florida Supreme Court Approved Family Law Form 12.915, and you must provide your e-mail address on each form on which your signature appears. Please **CAREFULLY** read the rules and instructions for: Certificate of Service (General), Florida Supreme Court Approved Family Law Form 12.914; **Designation of Current Mailing and E-mail Address**, Florida Supreme Court Approved Family Law Form 12.915; and Florida Rule of General Practice and Judicial Administration 2.516.

Where can I find more information?

Before proceeding, you should read “General Information for Self-Represented Litigants” found at the beginning of these forms. The words that are in **“bold underline”** in these instructions are defined there. For further information, see section 61.30, Florida Statutes.

Special notes...

Remember, a person who is NOT an attorney is called a nonlawyer. If a nonlawyer helps you fill out this form, that person must give you a copy of a **Disclosure from Nonlawyer**, Florida Family Law Rules of Procedure Form 12.900(a), before he or she helps you. A nonlawyer helping you fill out this form also **must** put his or her name, address, and telephone number on the bottom of the last page of every form he or she helps you complete.

IN THE CIRCUIT COURT OF THE _____ JUDICIAL CIRCUIT,
IN AND FOR _____ COUNTY, FLORIDA

Case No.: _____
Division: _____

Petitioner,

and

Respondent.

NOTICE OF JOINT VERIFIED WAIVER OF FILING FINANCIAL AFFIDAVITS

The Petitioner, _____, and the Respondent, _____ (collectively "parties"), hereby file this Notice of Joint Verified Waiver of Filing Financial Affidavits, as follows:

1. The parties acknowledge that evidence of their current or past financial circumstances may be necessary for future court proceedings.
2. The parties acknowledge they each have provided the other with a fully executed and sworn financial affidavit in conformity with Florida Family Law Form 12.902(b) or 12.902(c), as applicable.
3. The parties acknowledge that the responsibility to retain copies of all affidavits exchanged remains solely with the parties.
4. This notice to waive the filing of the financial affidavit only applies to the current filing and does not automatically apply to any future filings. This waiver may be revoked by either party at any time.

Nothing in this Notice of Joint Verified Waiver of Filing Financial Affidavits precludes any party from filing that party's financial affidavit or that of the other party in the future if the financial condition of a party is relevant to a pending matter, nor shall it preclude a party from requesting the other party serve upon the requesting party an initial or updated financial affidavit in the future.

Under penalties of perjury, I declare that I have read this document and the facts stated in it are true.

Signature of Petitioner
Printed Name: _____
E-mail Address: _____
Address: _____
City, State, Zip: _____

Telephone Number: _____

Under penalties of perjury, I declare that I have read this document and the facts stated in it are true.

Signature of Respondent

Printed Name: _____

E-mail Address: _____

Address: _____

City, State, Zip: _____

Telephone Number: _____

CERTIFICATE OF SERVICE

I certify that a copy of this document was [check all used] to the person(s) listed below on (date)_____.

____ Petitioner: () e-mailed () mailed () faxed () hand delivered

____ Attorney for Petitioner: () e-mailed () mailed () faxed () hand delivered

____ Respondent : () e-mailed () mailed () faxed () hand delivered

____ Attorney for Respondent: () e-mailed () mailed () faxed () hand delivered

____ Other: _____: () e-mailed () mailed () faxed () hand-delivered

Signature of Filing Party or his/her Attorney

Printed Name: _____

E-mail Address(es): _____

Address: _____

City, State, Zip: _____

Telephone Number: _____

Fax Number: _____

Florida Bar Number: _____